

**From:** Charan Martin [charan.martin@dataprotection.education](mailto:charan.martin@dataprotection.education)   
**Subject:** Re: 55912 SAR  
**Date:** 13 May 2021 at 17:48  
**To:** Business Manager [abm@smpsac.org](mailto:abm@smpsac.org)

---

CM

Hi Malcolm,

I note from the data rights log that at present the SAR is not due until the 23rd May so it may be a good idea to hold off sending letter until early next week in order that you can assess the data you have already collated, can consider how much more you think you have to collate in order that you can assess and plan what needs to be done to manage the request. This would allow you to give the requestor a realistic timeframe for your response.

Also there is nothing to prevent you from sending the personal data that does not need redaction to the data subject as and when that is available which I am sure would assist the requestor and assure her that you are dealing with her request without undue delay. The data that does not need redaction can be sent sooner than the data that does require redaction.

I am back in the office on Tuesday so we could arrange a time on Tuesday afternoon to reassess exactly where you are with matters and discuss.

I suggest your wording in respect of the complexity of the request is changed as suggested below, given the ICO guidance on complexity which I have outlined to you. Staffing issues per se would not be a good enough reason for an extension though I appreciate that this does impact upon you as a school.

We consider the request to be complex because there is a large volume of data in respect of 3 data subjects which is contained in both electronic and paper files. We will need to conduct a through search in order to meet your request and appropriately redact the data so as to ensure that the data of other individuals is not disclosed. Further, as one of the data subjects is 15 years of age, and no longer at our Academy, they may be of sufficient age and understanding to exercise their own data rights. We will therefore need to contact them directly to obtain their consent to release their personal data to you.

We are a standalone Academy and administration resources are limited to deal with collating a large volume of paper and electronic records, alongside day-to-day operations. We will however endeavour to get the data you have requested to you without undue delay.

Kind regards,

Charan Martin  
LLB (Hons)  
Barrister  
DPE Consultant  
[charan.martin@dataprotection.education](mailto:charan.martin@dataprotection.education)

Please note at present I am not available on a Monday or Friday. If you have an urgent query, please complete a ticket on the Knowledge Bank and a member of the DPO team will get back to you.



Please think of the environment before printing this email.

This email (and any attachment) is intended only for the attention of the addressee(s). Unauthorised use, disclosure, storage or copying is not permitted. If you are not the intended recipient, please destroy all copies and inform the sender by return of email.

Internet email is not a secure medium. Any reply to this message could be intercepted and read by someone else. Please bear this in mind when deciding whether to send material in response by email.

On 13 May 2021, at 15:45, Business Manager <[abm@smpsac.org](mailto:abm@smpsac.org)> wrote:

Hi,

Thought it may be quicker to email you. Is the following text for the letter ok:

Thank you for your email of the 26th April 2021 making a request for personal information under the Freedom of Information Act 2000.

As advised in my email sent to you on Monday 10th May 2021, we have raised and logged your request with our Data Protection Officer (Data protection Education), who have advised that this request should be treated as a Subject Access Request (SAR) as it is a request for personal data.

We are now writing to inform you that whilst the Academy has been complying with your request, due to the complexity and vast amount of the information required, we will be applying an extension to this SAR of a further two months. We will however ensure this information reaches you without undue delay and will as such, release the information as soon as it is available.

Our reasons for applying the extension include;

- You have requested personal information on three separate subjects
- One of the subjects is no longer at our Academy and will need to be contacted directly for us to obtain their consent for us passing on their information to you
- We are a standalone Academy and administration resources are limited to deal with collating a large volume of paper and electronic records, alongside day-to-day operations
- Some of the staff required to aid in the processing of this request are part-time

We hope you understand our reasons for applying this extension and as mentioned above, we are doing everything we can to ensure this reaches you without undue delay.

If you have any questions, please do not hesitate to contact me.

Many Thanks

**Malcolm Johnston** | School Business Manager



**PRIVACY NOTICE:**

This message and any included attachments are property of the Academy and is intended only for the addressee(s). The information contained herein may include privileged or otherwise confidential information. Unauthorised review, forwarding, printing, copying, distributing, or using such information is strictly prohibited and may be unlawful. If you received this message in error, or have reason to believe you are not authorised to receive it, please promptly delete this message and notify the sender by email. For further information please contact the Academy using the main telephone number.

St Mary's Church of England Academy Trust, a company limited by guarantee, registered in England and Wales under company number 07733363